

26STCP14192 26STCP14192

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-18

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Case Number: 26STCP14192 Hearing Date: September 18, 2026 Dept: 512

HEARING DATE: Fri., September 18, 2026 JUDGE

/DEPT: Mkrtyan/512

CASE NAME: Garcia

Caceres v. Does 1-50 COMP. FILED: 05-04-26

CASE NUMBER: 26STCV14192

NOTICE:

NO

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Andrew J. Lopez from SoCal Injury Lawyers

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Andrew J. Lopez from

SoCal Injury Lawyer's Motion to

be Relieved as Counsel for Plaintiff Gustavo A. Garcia Caceres is CONTINUED to

Monday, October 19, 2026, at 9:00 a.m. in the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Counsel is to file and serve supplemental papers addressing the deficiencies noted herein.

Plaintiff's counsel must also submit a corrected MC-053 form: "Order Granting Attorney's Motion to Be Relieved" providing accurate dates.

Plaintiff's Counsel is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct
Address (CCP §§ 1013, 1013a) OK

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None
filed as of September 16, 2026 ☐ Late ☒ None

REPLY: None
filed as of September 16, 2026 ☐
Late ☒ None

ANALYSIS:

I.
Background

On May 4, 2026, Plaintiff Gustavo A. Garcia Carceres ("Plaintiff") filed the instant action against Defendants Does 1-50.

On August 12, 2026, Counsel for

Plaintiff, Andrew J. Lopez of SoCal Injury Lawyers ("Counsel") filed and served the instant Motion to be Relieved as Counsel for Plaintiff (the "Motion").

On

August 31, 2026, the Court continued the hearing on the Motion and ordered Counsel to give notice by mail of the continued hearing date.

No Opposition
has been filed.

II.

Legal
Standard

Code

of Civil Procedure section 284 states that "the attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) Upon the consent of both client and attorney...; (2) Upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)

An application

to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,

California Rules of Court, rule 3.1362 subsection (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail. If the notice is served by electronic service, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).) As used in this rule, "current" means:

“[T]he address
was confirmed within 30 days before the filing of the motion to be relieved.

Merely
demonstrating that the notice was sent to the client’s last known address and
was not returned or no electronic delivery failure message was received is not,
by itself, sufficient to demonstrate that the address is current.”

(Cal. Rules of
Court, rule 3.1362, subd. (d).)

III.
Discussion

On August 12,
2026, Counsel moved the Court to
be relieved as attorney of record for Plaintiff. (MC-051.) Counsel filed
MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule 3.1362,
subds. (a), (c), (e).)

Counsel seeks to be relieved on the following
grounds: “Irreconcilable differences have arisen resulting in a breakdown of
the attorney-client relationship, and it has now become unreasonably difficult
to continue to represent the client. [Counsel] asked [Plaintiff] to secure new
counsel but he has yet to do so.” (MC-052, ¶ 2.)

The Court is satisfied with Counsel’s
reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule
1.16.)

However, the Court finds notice of
hearing on the Motion is defective. There is no proof of service filed that Counsel
served Plaintiff with notice of the continued hearing date.

Additionally, the Court finds that the
MC-053 Form includes inaccurate dates. The MC-053 Form needs to be resubmitted
with accurate dates.

Accordingly, Counsel’s Motion is
CONTINUED to allow Counsel an opportunity to file and serve supplemental papers

addressing the deficiencies noted herein.

IV.

Conclusion & Order

Accordingly, Counsel Andrew J.

Lopez from SoCal Injury Lawyer's Motion

to be Relieved as Counsel for Plaintiff Gustavo A. Garcia Caceres is CONTINUED

to Monday, October 19, 2026, at 9:00 a.m. in the Stanley Mosk Courthouse.

At least 16 court days prior to the

next scheduled hearing, Counsel is to file and serve supplemental papers

addressing the deficiencies noted herein.

Plaintiff's counsel must also submit a

corrected MC-053 form: "Order Granting Attorney's Motion to Be Relieved"

providing accurate dates.

Plaintiff's Counsel is ordered to give

notice.